The winter session of Parliament, which came to an end on December 22, will perhaps go down in Indian history as one where the relationship between a ruling government and the Opposition reached its nadir. In the nearly three-week period, both houses passed 10 bills, including the Bharatiya Nyaya (Second) Sanhita, 2023; Bharatiya Nagarik Suraksha (Second) Sanhita, 2023; and Bharatiya Sakshya Sanhita, which are set to replace the Indian Penal Code, 1860; Code of Criminal Procedure, 1973; and the Indian Evidence Act, 1872, respectively. But it happened without any debate in Parliament as 143 of the total 316 opposition members—45 per cent—in both houses were suspended.

In the process, several undesirable records too were set, such as the suspension of 78 MPs on December 18, the highest on a single day. What triggered this unprecedented record in what was the penultimate Parliament session before the general election next year?

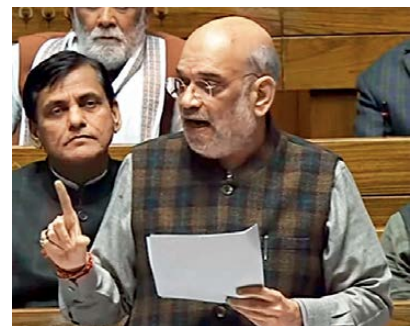
It was the ruckus that erupted in both houses following the Opposition's demand for a statement from Prime Minister Narendra Modi and Union home minister Amit Shah on the security breach in the Lok Sabha on December 13 this year, the 22nd anniversary of the Parliament attack by a five-member suicide squad. This time, two men with smoke canisters jumped down from the visitors' gallery and leapt across the desks of LS members spraying smoke. The unemployed youth were reportedly unhappy with the policies of the BJP government and wanted to grab the PM's attention.

While the PM asked Opposition leaders not to politicise the security breach—the two men had got entry passes to Parliament at the recommendation of BJP MP Pratap Simha—Lok Sabha Speaker Om Birla refused to allow a debate, saying the breach is not within the purview of the government. Instead, Birla, in a letter to all MPs, stated that his office was responsible for the security of the Parliament House complex. In response, the Opposition raised slogans and placards, and even trooped to the well, determined not to let the House function till the government relented on their demands.



UNITED STAND Opposition MPs of the INDIA bloc protest at Jantar Mantar, Dec. 22

PTI



EYE OF THE STORM Home minister Amit Shah

A STEP TOO FAR?

Going by the book, such actions can invite suspension. Under Rule 374 of the Rules of Procedure and Conduct of Business, the Lok Sabha Speaker can name a member who "disregards the authority of the Chair or abuses the rules by persistently and wilfully obstructing the business of the House". After the member is named, the House can move a motion to suspend the legislator for a period not exceeding the remainder of the session. The motion has to be passed by a majority of the members. Under Rule 256 of Rules of Procedure and Conduct of Business in the Council of States, the Rajya Sabha chairman can initiate similar action against any member of the House (see *Exit Route*).

Under Rule 374A, there is also a provision for automatic suspension in the Lok Sabha if a member infringes on the well of the House or shouts slogans. Most members reached the well of the House this time, inviting suspension. "For the first time in my parliamentary career of nearly 15 years, I too entered the well holding a placard," says Congress LS member Shashi Tharoor.

Both Lok Sabha Speaker Birla and Rajya Sabha chairman and Vice-president Jagdeep Dhankhar justified their actions by pointing towards violations of House rules. "I have no option when people obstinately decline to see reason or follow rules and reduce themselves to a shouting brigade, which puts to shame the entire institution of Parliament," Dhankhar said. Union minister and leader of the House in the Rajya Sabha, Piyush Goyal, said that Opposition members wilfully disrupted proceedings despite the decision taken earlier by all parties that placards would not be brought inside the House.

As more than two-thirds of the suspended MPs belong to the INDIA bloc, a formation of 28 Oppo-